EPR 113

BASIC COMMUNICATION SKILLS AND KEY ELEMENTS

Communication is the exchange of information, ideas, emotions, and opinions through speech writing, signs, symbol or behaviour.

Listening, reading, speaking, writing, non-verbal communication skills are the types of communication skills.

- Good listeners:

-Pay good attention

-Avoid distractions

-Give feedback and maintain eye contact

- Good speaking skills include: confidence, clear pronunciation of words, using appropriate tones

COMMUNICATION ELEMENTS:

1. The sender
2. The message
3. Encoding
4. Channel
5. Receiver
6. Decoding
7. Feedback
8. Noise
9. Context

IMPORTANCE OF COMMUNICATION SKILLS:

- Promotes understanding
- Enhances professional relationships
- Prevents conflicts and misunderstandings
- Improves teamwork and cooperation
- Increases confidence and leadership abilities
- Supports effective advocacy and public speaking
- Facilitates decision making

PUBLIC SPEAKING

Public speaking is the act of delivering a speech or presentation before an audience with the aim of informing, persuading, entertaining or motivating them.

Public speaking and advocacy are essential communication tools used to inform, educate, persuade, influence people.

OBJECTIVES OF PUBLIC SPEAKING:

- To inform the audience
- To persuade people to accept a view point
- To motivate action
- To educate the public
- To entertain listeners

ADVOCACY

Advocacy is the process of defending, promoting or supporting a cause, policy, idea or the right of individuals or groups. It aims to influence public opinions, policies, laws, decisions.

ADVOCACY TECHNIQUES:

- Research
- Evidence gathering
- Effective communication
- Public awareness campaign
- Negotiation and dialogue
- Lobbying
- Coalition building

LAW 112

INTRODUCTION TO LAW AND LEGAL METHODS

INTRODUCTION TO LEGAL METHODS & PROFESSIONAL ETHICS OF ADVOCACY

Legal ethics are the values and rules that govern the activities of legal members in the court room.

Ethics are not optional, as failure of being knowledgeable about them can lead to disbanding of one's title as a Barrister.

THE CORE DUTIES OF A BARRISTER

A practicing lawyer occupies a unique position as a Minister in the Temple of Justice.

- **Duty to the Court:** A Barrister is first and foremost an officer of the court, while a lawyer must zealously advocate for their client.
- **Duty of Conduct:** It means absolute honesty and integrity in day to day dealings. A barrister must never knowingly present a false evidence to the court.

Male Judges: The judge is addressed as “Your Lordship” (His Lordship)

Female Judges: The judge is addressed as “Your Ladyship”

But collectively they are all addressed as Your Lordships.

N/B: In the Magistrate Court (i.e. Tribunals) you address the Judges as “Your Worship”

In the High Court they are addressed as Your Lordship. (E.g FUTO High Court)

HOW TO ADDRESS THE JUDGE (FIRST INTRODUCTION)

May it please you Your Lordship. My name is Barr. . . . . appearing for the defendant / plaintiff

The Registrars are addressed as Your Honour but in FUTO you can use Sir/Madam Registrar

PTS 114

LEGISLATIVE PROCESS AND TIME MANAGEMENT

THE PARLIAMENT AND IMPORTANCE OF LAW MAKING

The Parliament is the highest legislative institution in a democratic system of government. It is the body responsible for making laws, representing the people and overseeing the activities of the Executive arm of government.

MEANING OF PARLIAMENT

It is the legislative arm of government, empowered to make, amend and repeal laws for the peace, order and good governance of a state.

In Nigeria, the Parliament is called the National Assembly. The National Assembly of Nigeria consists of:

- Senate of Nigeria (Upper House)
- The House of Representatives of Nigeria (Lower House)

Both the Senate & House of Reps make up the National Assembly of Nigeria, but they differ in composition, representation and leadership.

DIFFERENCE BETWEEN SENATE AND HOUSE OF REPRESENTATIVES

1. **Position:**

- Senate: Senate are the upper chamber
- House of Rep: lower chamber

2. **No. of Members:**

- Senate: Senate has 109 senators
- House of Reps: House of Reps has 360 members

3. **Terms of Representation:**

- Senate: Each state elects three (3) senators while the FCT elects one (1) senator.
- House of Rep: Members respresent federal constituency based on population.

4. **Terms of Presiding Officer:**

- Senate: It is the President of the Senate.
- House of Rep: It is called the Speaker of the House of Representative.

5. **Title:**

- Senate: They are called Senators
- House of Rep: They are called Honourable Members

FUNCTIONS OF PARLIAMENT

- Law Making Function
- Representation
- **Oversight Functions:** Supervise the government, dept. to ensure accountability and proper use of funds.
- Approval of a Budget
- Constitutional Amendment
- Protection of Democracy.

MEANING OF LAW MAKING

Law making refers to the process through which rules and regulation are formulated, debated, approved and enacted by parliament to govern society.

IMPORTANCE OF LAW MAKING

- Maintenance of Law and Order
- Protection of rights and freedom
- Promotion of Justice
- Economic development
- Protection of Public Interest
- Conflict Resolution
- National Development

CHALLENGES FACED BY PARLIAMENT IN LAW MAKING

- Political Interference
- Corruption
- Inadequate public participation
- Delay in passing important bills.

PROCESS OF LAW MAKING (LEGISLATIVE PROCESS)

- **Drafting of the Bill:** This bill can be proposed to the house by the executive, members of the house or government agencies.
- **First Reading:** After the bill have be drafted it is then brought to the house and read once, no debate is allowed in this reading.
- **Second Reading:** The general principle of bill and purpose are being debated.
- **Committee Stage:** The Senate President or Speaker will set up a committee to go through what was debated in the house, suggest amendment and prepare their own report.
- **Report Stage:** The committee report is submitte[d] to the house for members to go through and they vote if the bill should be carried out
- **Third Reading:** The final version is now again presented to the House, debated and voted.
- **Passing to the other chamber:** And then it will go through the second arm (Bi-cameral legislation/Consideration by Other House) Same process from 1 – 6 for other House
- **Harmonization:** They come to an harmonization, if the Senate and House of Rep pass a different report of the Bill a conference committee will reconcile the difference and adjust it.
- **The Presidential Assent:** It is passed to the President to either sign the bill into law or refuse to sign.

If the President signs the bill it becomes a law.

If the President refuses to sign with no reasons, the Senate/House waits for a period of 21 days, 2/3 of both the Senate and House of Rep, they can override the President's Veto power and can sign the bill into Law.